



DECISION

Complaint No. : POS/7802/ROK-220/(Khp)/2023

Name and address of the complainant : Mr. Ahsan-ul-Haque,
S/o Abdul Haque Narejo, Social Worker,
R/o Village Khariri Narejo, P.O Khuhra Shareef,
Deh Wadh Pagia, Taluka Gambat, District Khairpur.

Name of the Agency Complained against : Public Health Engineering Department

Name & Designation of Investigating Officer : AHMED BAKHSH GHUMRO,
Consultant / Incharge, Regional Office, Khairpur

Vetted by : Dr. Syed Sharaf Ali Shah, Advisor-J

Subject : **COMPLAINT AGAINST CONTRACTOR WHO ALLEGEDLY FAILED TO COMMENCE THE WORK AWARDED IN JUNE 2023 DESPITE ADVANCE PAYMENT.**

COMPLAINT

Mr. Ahsan-ul-Haque Narejo, a Social Worker, resident of Village Khariri Narejo, Taluka Gambat, filed a complaint on 26.09.2023 alleging that a tender for the Drainage and Paver Scheme at his village was invited by Mr. Khalid Mangi, Executive Engineer, Public Health Engineering Division-II, Khairpur at Ranipur on 26-05-2023. He alleged that the work was awarded to a favoured contractor by Tender Clerk, Mr. Juman Jarwar, and Draftsman, Mr. Noor Ahmed Mallah. He further alleged that an advance payment was made to the contractor, showing the scheme as completed on papers in June 2023, whereas no work was actually carried out. He, therefore, requested intervention of this Institution for an inquiry and early completion of the awarded work.

PROCEEDINGS

02. The complaint was admitted under section 10 of the Establishment of the office of Ombudsman for the Province of Sindh Act, 1991 (amended up to date), by condoning the delay in filing it and subject to submission of an Affidavit on Form "A".

03. The matter was taken up with the Executive Engineer, Public Health Engineering Division-II, Khairpur for comments / report. After extensive correspondence, the Executive Engineer, PHED-II, Khairpur at Ranipur, submitted a report on 14.01.2025 wherein he stated that he visited the site work at Village Khariri along with the concerned Assistant Engineer, PHF Sub Division Gambat. According to the Executive Engineer, the work had been commenced after issuance of the work order and was ongoing as per PWD specifications.

04. On 03.02.2025, the Executive Engineer submitted another report reiterating that the work had started soon after award to the contractor and was progressing as per specifications. He denied that any advance payment had been made to the contractor.

05. The Investigating Officer visited the site on 23.10.2025 to verify the progress of work, accompanied by the concerned Assistant Engineer, the complainant, and local villagers. During the visit, the Investigating Officer found that only the paver work had been done whereas, according to the General Abstract and Technical Sanction the scheme was approved at a cost of Rs. 4.5 million, comprising three components Surface Drains of Rs.2,158,726/-, C.C. Block of Rs.1,893,789/- & C.C. Paver Block of Rs.232,702/-. The measurement of the laid paver recorded during the visit by the Assistant Engineer, PHE Sub-Division Gambat, was 8,200 sq.ft.

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06. Perusal of record produced by the Assistant Engineer, PHE Sub-Division Gambat, shows that the work order was issued to the contractor on 12.06.2023, with a stipulated completion period up to June 2024. The record reveals that four running bills, totaling Rs.4,258,623/-, were paid to the contractor by successive Executive Engineers namely, Mr. Khalid Ahmed Mangi, Mr. Rizwan Phul, Mr. Azmat Phul, and Mr. Sadaqat Ali Sohu up to June 2025. The record further reveals that a 52% premium was also allowed to the contractor. Total payment to Contractor was Rs.4705,000/- including Income Tax and SRB Tax.

FINDINGS

07. From the above discussion, it is evident that:

- (i) The scheme for construction of Surface Drains, C.C. Block, and Paver Block at Village Khariri Narejo, Taluka Gambat, was approved at a cost of Rs. 4.5 million and awarded to M/s Jaan Builders, Government Contractor, on 12.06.2023, with a completion period of twelve months (up to June 2024).
- (ii) The Executive Engineers namely, Mr. Khalid Ahmed Mangi, Mr. Rizwan Phul, Mr. Azmat Phul, and Mr. Sadaqat Ali Sohu allowed payment of running bills amounting to Rs. 4,258,623/- up to June 2025, despite the fact that the contractor had deviated from the approved scope of work and the physical progress was not **commensurate** with the financial progress.

DECISION

08. In view of the foregoing and in exercise of powers vested in me under Section 11 of the *Establishment of the Office of Ombudsman for the Province of Sindh Act, 1991* (amended up to date), I hereby direct the **Secretary, Public Health Engineering Department, Government of Sindh** to:

- (i) Conduct an inquiry into the matter and ensure completion of the work strictly in accordance with the approved scope and Technical Sanction of the scheme.
- (ii) Initiate disciplinary action against the delinquent officers who allowed payment despite the deviation from the approved scope of scheme and despite the fact that physical progress was not commensurable with financial progress.

09. The complaint is accordingly disposed of and consigned to record.

10. Compliance report shall be submitted to this office within sixty (60) days.

“Given under my hand and seal of office”



Sd /-
(MUHAMMAD SOHAIL RAJPUT)
Sitara-e-Imtiaz. PAS
Ombudsman, Sindh
Karachi, dated 25th November, 2025